ACT #2026-341

SB271

2JE8FIS-3

By Senator Givhan (Constitutional Amendment)

RFD: State Governmental Affairs

First Read: 05-Feb-26

Enrolled, An Act,

Proposing an amendment to Section 127 of the Constitution of Alabama of 2022, relating to certain state officers; to require the office of Lieutenant Governor to be filled by election rather than remain vacant in certain circumstances; to authorize the Legislature to set the salary of the Lieutenant Governor and officers of the Legislature; and to require any expenditure of legislative funds for travel to be approved by a legislative officer.

BE IT ENACTED BY THE LEGISLATURE OF ALABAMA:

Section 1. The following amendment to the Constitution of Alabama of 2022, is proposed:

PROPOSED AMENDMENT

PART I.

Section 127 of the Constitution of Alabama of 2022, is amended to read as follows:

"Section 127

(a) ~~In case of the governor's removal from office, death or resignation~~If a vacancy occurs in the office of the governor, the lieutenant governor shall become governor.

(b) If ~~both~~ a vacancy occurs in the office of the governor and the office of the lieutenant governor ~~be removed from office, die or resign~~ more than ~~sixty~~60 days prior to the next general election~~,~~ at which any state officers are to be elected, a governor and lieutenant governor shall be elected at such election for the unexpired term.~~, and in the event of~~

~~a vacancy in the office, caused by the removal from office, death or resignation of the governor and lieutenant governor, pending~~During such vacancy and until their successors shall be elected and qualified, the office of governor shall be held and administered by either the president pro ~~tem.~~tempore of the senate, speaker of the house of representatives, attorney-general, state auditor, secretary of state, or state treasurer in the order herein named.

(c) In case of the impeachment of the governor, his or her absence from the state for more than twenty days, ~~unsoundness of mind, or other disability~~or incapacity to serve, the power and authority of the office ~~shall~~, until the governor is acquitted, returns to the state, or is ~~restored to his mind, or relieved from other disability~~no longer incapacitated, shall devolve in the order ~~herein named,~~described in subsection (b) upon the lieutenant governor, president pro ~~tem.~~tempore of the senate, speaker of the house of representatives, attorney-general, state auditor, secretary of state, and state treasurer. If any of these officers ~~be~~ are under any of the disabilities herein specified, the office of the governor shall be administered in the order named by such of these officers as ~~may be~~ are free from such disability.

(d) If the governor ~~shall be~~ is absent from the state over twenty days, the secretary of state shall notify the lieutenant governor, who shall enter upon the duties of governor; if both the governor and lieutenant governor ~~shall be~~ are absent from the state over twenty days, the secretary

of state shall notify the president pro ~~tem.~~tempore of the senate, who shall enter upon the duties of governor, and so on, in case of such absence, he or she shall notify each of the other officers named in ~~their~~ the order of succession herein provided, who shall discharge the duties of the office until the governor or other officer entitled to administer the office in succession to the governor returns.

(e) If the governor-elect fail or refuse from any cause to qualify, the lieutenant governor-elect shall qualify and exercise the duties of governor until the governor-elect qualifies.~~; and in the event both~~ If both the governor-elect and the lieutenant governor-elect ~~from any cause~~ for any reason fail to qualify, the president pro ~~tem.~~ tempore of the senate, the speaker of the house of representatives, the attorney-general, state auditor, secretary of state, and state treasurer, shall, in like manner, in the order named, administer the office until the governor-elect or lieutenant governor-elect qualifies.

(f) If a vacancy occurs in the office of the lieutenant governor more than 60 days before the next general election at which any state officers are to be elected, a lieutenant governor shall be elected at such general election for the unexpired term."

PART II.

The following provision is added to the Constitution of Alabama of 2022 to read as follows:

Notwithstanding any other provision of the constitution:

(1) The Lieutenant Governor and officers of both houses of the Legislature shall be paid an amount set by joint resolution; and

(2) Any expenditure of funds appropriated for use by members of the Legislature for travel shall be approved by an officer of the Legislature elected from the full membership of the respective chamber.

Upon ratification of this constitutional amendment, the Code Commissioner shall number and place this amendment as appropriate in the constitution, which may include inserting a provision into an existing section, omitting this instructional paragraph and may make the following nonsubstantive revisions: change capitalization, hierarchy, spelling, and punctuation for purposes of style and uniformity; correct manifest grammatical, clerical, and typographical errors; revise internal or external citations and cross-references; harmonize language; and translate effective dates.

END OF PROPOSED AMENDMENT

Section 2. An election upon the proposed amendment shall be held in accordance with Sections 284 and 285 of the Constitution of Alabama of 2022, and the election laws of this state. The appropriate election official shall assign a ballot number for the proposed constitutional amendment on the election ballot and shall set forth the following description of the substance or subject matter of the proposed constitutional amendment:

"Proposing an amendment to the Constitution of Alabama

of 2022, to provide for the election of a Lieutenant Governor if the Office of Lieutenant Governor becomes vacant during the first two years of a term, to authorize the Legislature to set the salary of the Lieutenant Governor and officers of the Legislature, and to require any expenditure of legislative funds for travel to be approved by a legislative officer.

Proposed by Act ____."

This description shall be followed by the following language:

"Yes( ) No( )."

Section 3. The proposed amendment shall become valid as a part of the Constitution of Alabama of 2022, when approved by a majority of the qualified electors voting thereon.

President and Presiding Officer of the Senate

Speaker of the House of Representatives

SB271

Senate 19-Feb-26

I hereby certify that the within Act originated in and passed the Senate, as amended.

Patrick Harris,
Secretary.

House of Representatives
Amended and passed: 31-Mar-26

Senate concurred in House amendment 01-Apr-26

By: Senator Givhan

Alabama Secretary Of State

Act Num....: 2026-341
Bill Num...: S-271

Recv'd 04/01/26 04:43pmMQC

ENGROSSED

Senate Bill No. 271 CA

SPONSOR

1 Gwin-haw

CO-SPONSORS

2 _____ 19 _____

3 _____ 20 _____

4 _____ 21 _____

5 _____ 22 _____

6 _____ 23 _____

7 _____ 24 _____

8 _____ 25 _____

9 _____ 26 _____

10 _____ 27 _____

11 _____ 28 _____

12 _____ 29 _____

13 _____ 30 _____

14 _____ 31 _____

15 _____ 32 _____

16 _____ 33 _____

17 _____ 34 _____

18 _____ 35 _____

SENATE ACTION

I hereby certify that the Resolution as required in Section C of Act No. 81-889 was adopted and is attached to the Bill, SB 271.

yeas 29 nays 0 abstain 0

PATRICK HARRIS,
Secretary

I hereby certify that the notice & proof is attached to the Bill, SB _____ as required in the General Acts of Alabama, 1975 Act No. 919.

PATRICK HARRIS,
Secretary

CONFERENCE COMMITTEE

Senate Conferees _____

_____

_____

HOUSE ACTION (CA)

DATE: 2-26 20__

RD 1 RFD 3-4

REPORT OF STANDING COMMITTEE

This bill having been referred by the House to its standing committee on State Government was acted upon by such committee in session, and returned therefrom to the House with the recommendation that it be Passed, w/amend(s) _____ w/sub _____.

This 4th day of March, 20 26

Chris Sells Chairperson

DATE: 3-5 20__

RF (CA) RD 2 C/

DATE: 20__

RE-REFERRED ☐ RE-COMMITTED ☐

Committee _____

I hereby certify that the Resolution as required in Section C of Act No. 81-889 was adopted and is attached to the Bill, SB 271.

YEAS 100 NAYS 0

JOHN TREADWELL,
Clerk

FURTHER HOUSE ACTION (OVER)